SPONSOR: Sen. Poore & Rep. Kamela Smith
Sen. Wilson

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 295

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO AESTHETICIANS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 5101, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5101. Definitions.

As used in this chapter:

(1) "Ablation" means any procedure that will excise, vaporize, disintegrate, or remove the epidermis, dermis, or hypodermis.

(2) "Aesthetician" ~~is an individual who practices any of the following:~~

~~a. Cleansing, stimulating, manipulating and beautifying skin by hand or mechanical or electric apparatus or appliance.~~

~~b. Application of lash extensions, additions or enhancements, including permanent waving and tinting.~~

~~c. Removal of superfluous hair.~~

~~d. Gives treatments to keep skin healthy and attractive.~~

~~An aesthetician is not authorized to prescribe medication or provide medical treatment in the same manner as a dermatologist.~~ means any person licensed under this chapter who is not an apprentice or student practicing aesthetics, who must have the qualifications required in this chapter.

a. An aesthetician may do all of the following, subject to training requirements and manufacturer directions, where applicable, as set forth in the Board's rules and regulations:

1. Chemical exfoliation.

2. Physical exfoliation.

3. Microdermabrasion.

4. Cosmetic microneedling.

5. Dermaplaning.

6. Extraction.

7. Hydrotherapy.

8. Cleanse, stimulate, manipulate, and beautify skin by hand, mechanical, or electric apparatus or appliance or Class 1 medical device.

9. Apply lash extensions, additions, or enhancements, including permanent waving and tinting.

10. Laminate or tint eyebrows.

11. Remove superfluous hair by the use of depilatory, tweezers, wax, electrical, mechanical, or any means other than by the use of a laser light-based device.

12. Apply to the face, body, or scalp an alcohol, cream, lotion, astringent, or cosmetic preparation.

13. Perform treatments for the relaxation, hydration, contouring, and beautification of the face, skin, body, eyelashes, or eyebrows.

14. Perform non-ablative skin rejuvenation.

15. Perform ablation of the epidermis.

16. Other cosmetic services of the epidermis.

b. An aesthetician may not do any of the following:

1. Diagnose illness, disease, or injury.

2. Perform ablation of the dermis or hypodermis.

3. Prescribe medication or provide medical treatment in the same manner as a dermatologist.

(3) "Apprentice" means any person who is engaged in the learning of any or all the practices of cosmetology, barbering, nail ~~technology~~ technology, or electrology from a practitioner licensed in the profession the apprentice is studying. The apprentice may perform or assist the licensed practitioner in any of the functions which the practitioner is licensed to perform.

~~(3)~~ (4) "Barber" means any person licensed under this chapter who, for a monetary consideration, shaves or trims beards, cuts or dresses hair, gives facial or scalp massages, or treats beards or scalps with preparations made for this purpose.

~~(4)~~ (5) "Board" means the state Board of Cosmetology and Barbering under this chapter.

(6) “Chemical exfoliation” means enzyme and chemical peels classified as superficial/light peels of the epidermis. Peels containing TCA must be at a concentration of 35% or less. Peels containing pyruvic acid must be at a concentration of 40% or less. Peels containing glycolic acid must be at a concentration of 30% or less. No peel may have a pH more acidic than 3.

~~(5)~~ (7) “Classroom hour” means 50 minutes of each 60-minute hour.

~~(6)~~ (8) “Cosmetologist” means any person licensed under this chapter who is not an apprentice or student practicing cosmetology, who shall have the qualifications provided for by this chapter.

~~(7)~~ (9) “Cosmetology” means performing any of the following services for compensation:

a. The embellishment, ~~cleansing~~ cleansing, and beautification of human hair, such as arranging, dressing, curling, permanent waving, cutting, singeing, pressing, chemically bleaching or coloring, chemically straightening, or similar services.

b. Applying lash extensions, ~~additions~~ additions, or enhancements, including permanent waving and tinting.

c. The temporary removal of superfluous hair.

d. Nail technology.

e. Massaging, stimulating, beautifying, or similar services, of the scalp, face, arms, ~~hands~~ hands, or the upper body. Any service performed under the definition of “cosmetology” may be performed by hand or mechanical or electrical devices and may include the use of cosmetic preparations, tonics, lotions or creams.

~~(8)~~ (10) “Cosmetology shop” means any place or part thereof wherein cosmetology, barbering, electrology, nail technology, aesthetics, or any of their practices, are performed for compensation, whether or not the establishment holds itself out as a cosmetology shop.

(11) “Dermaplaning” means the use of a sterile surgical blade to remove the top layer of dead skin cells and vellus hair (“peach fuzz”) from the face.

(12) “Dermis” means the 2nd (middle) layer of skin, located beneath the epidermis and above the hypodermis.

~~(9)~~ (13) “Division” means the Delaware Division of Professional Regulation.

~~(10)~~ (14) “Electrologist” means any person licensed under this chapter who, for a monetary consideration, engages in the removal of superfluous hair by use of specially designed electric needles.

(15) “Epidermis” means the outermost of the 3 layers that comprise the skin, the inner layers being the dermis and hypodermis.

(16) “Extraction” means the process of clearing a clogged or compacted pore by manual or mechanical means. Manual means consists of using the finger method or metal comedone extractor. Mechanical means consists of using a vacuum suction or ultrasonic scrubber device.

(17) “Hydrotherapy” means the use of water for esthetic purposes or beautification of the body.

(18) “Hypodermis” means the innermost or subcutaneous layer of the skin.

~~(11)~~ (19) “Instructor” means any person who teaches cosmetology, barbering, ~~electrology~~ electrology, or nail technology.

~~(12)~~ (20) “Master barber” means any person licensed under this chapter who, for a monetary consideration, shaves or trims beards, gives facial or scalp massages, treats beards or scalps with preparations made for this purpose, or embellishes, ~~cleans~~ cleans, or beautifies human hair, which includes arranging, dressing, curling, permanent waving, cutting, singeing, pressing, chemically bleaching or coloring, chemically straightening, or similar work.

(21) “Microdermabrasion” means the physical removal of surface epidermal cells using an abrasive material or apparatus.

(22) “Microneedling” means the use of multiple small needle which are solid and which are designed to pierce the skin, at no greater depth than 1.5 mm, for the purpose of stimulating collagen production or cellular renewal.

~~(13)~~ (23) “Nail technician” means any person licensed under this chapter who engages only in the practice of manicuring, ~~pedicuring~~ pedicuring, or sculpting nails, including acrylic nails, of any person.

~~(14)~~ (24) “Person” means ~~a corporation, company, association or partnership, as well as an individual~~ as defined in § 302 of Title 1.

(25) “Physical or mechanical exfoliation” means the manual removal of dead skin cells utilizing scrubs or tools.

~~(15)~~ (26) “Professional-in-charge” means a licensee who is responsible for the operation of a cosmetology shop, including ensuring that all employees are ~~licensed, where~~ licensed if required by law.

(16) “School of cosmetology,” “school of electrology,” “school of nail technology,” “school of barbering” means any place or part thereof where cosmetology, barbering, electrology, nail ~~technology~~ technology or any of the practices are taught, whether or not such place holds itself out as such.

(17) “State” means the State of Delaware.

(18) “Substantially related” means the nature of the criminal conduct, for which the person was convicted, has a direct bearing on the fitness or ability to perform 1 or more of the duties or responsibilities necessarily related to cosmetology, barbering, electrology, nail ~~technology~~ technology, or aesthetics.

Section 2. Amend § 5120, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5120. Display of license ~~[Repealed]~~.

All licenses issued under this chapter must be prominently displayed conspicuously or available upon demand in the place of business of the licensee. In addition, each place of business must have prominently displayed the address and telephone number of the Division of Professional Regulation, which individuals may contact concerning the services of licensees.

Section 3. Amend § 5121, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5121. Requirements for apprenticeships.

(a) An individual who chooses to seek eligibility for the cosmetologist, barbering, ~~electrology~~ electrology, or nail technician examination by apprenticeship shall apply to the Board for an apprentice permit.

(b) The owner of a shop that employs apprentices shall submit to the Board, on a form provided by the Board, a quarterly report of the hours earned by each apprentice. The reports ~~shall~~ must be submitted by the following dates: April 15, July 15, October 15, and January 15.

(c) ~~[Repealed.]~~ An apprentice must display that apprentice’s own apprenticeship license at that apprentice’s own workstation, in a place readily visible to anyone receiving that apprentice’s services.

(d) An apprentice may not be the employer of the supervising licensee.

Section 4. Amend § 5124, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5124. Definitions.

For the purpose of this subchapter:

(1) “Aesthetician” ~~is person who practices any of the following:~~

~~a. Cleansing, stimulating, manipulating and beautifying skin by hand or mechanical or electric apparatus or appliance.~~

~~b. Application of lash extensions, additions or enhancements, including permanent waving and tinting.~~

~~c. Removal of superfluous hair.~~

~~d. Gives treatments to keep skin healthy and attractive.~~

~~An aesthetician is not authorized to prescribe medication or provide medical treatment in the same manner as a dermatologist.~~

means any person licensed under this chapter who is not an apprentice or student practicing aesthetics, who must have the qualifications required by this chapter.

a. An aesthetician may do all of the following, subject to training requirements and manufacturer directions, where applicable, as set forth in the Board's rules and regulations:

1. Chemical exfoliation.

2. Physical exfoliation.

3. Microdermabrasion.

4. Cosmetic microneedling.

5. Dermaplaning.

6. Extraction.

7. Hydrotherapy.

8. Cleanse, stimulate, manipulate, and beautify skin by hand, mechanical, or electric apparatus or appliance or Class 1 medical device.

9. Apply lash extensions, additions, or enhancements, including permanent waving and tinting.

10. Laminate or tint eyebrows.

11. Remove superfluous hair by the use of depilatory, tweezers, wax, electrical, mechanical, or any means other than by the use of a laser light-based device.

12. Apply to the face, body, or scalp an alcohol, cream, lotion, astringent, or cosmetic preparation.

13. Perform treatments for the relaxation, hydration, contouring, and beautification of the face, skin, body, eyelashes, or eyebrows.

14. Perform non-ablative skin rejuvenation.

15. Perform ablation of the epidermis.

16. Other cosmetic services of the epidermis.

b. An aesthetician may not do any of the following:

1. Diagnose illness, disease, or injury.

2. Perform ablation of the dermis or hypodermis.

3. Prescribe medication or provide medical treatment in the same manner as a dermatologist.

Section 5. Amend § 5129, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5129. Display of ~~certificate [Repealed]~~ license.

All licenses issued under this chapter must be prominently displayed conspicuously or available upon demand in the place of business of the licensee. In addition each business must have prominently displayed the address and telephone number of the Division of Professional Regulation, which individuals may contact concerning the services of licensees.

SYNOPSIS

This Act adds definitions to update the scope of practice for aestheticians. The current scope of practice does not encompass the actual services that aestheticians are educated and trained to perform. This Act provides clarity to professionals and the public as to what treatments are permissible and specifies that an aesthetician's ability to perform treatments is subject to meeting training requirements and manufacturer directions. Finally, the Act adds language, which was previously repealed, to state that licenses must be displayed at the place of business or available for inspection upon request. An apprentice license must be displayed at the apprentice's workstation.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Poore